

THE NEEDED CHANGE IN THE AGE OF CONSENT.

AN APPEAL
For the Better Protection
of Our Girls.

BY
RICHARD ARTHUR, M.A., M.D.

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Good laws, as a great statesman has said, are for the purpose of making it easy to do right and difficult to do wrong. Such laws protect the weak and ignorant who are unable to take care of themselves, and deter the cunning and unscrupulous from injuring their fellows. When the strong prey upon the weak in any community, without the law in any way attempting to prevent it, such apathy points to a low moral sensibility in the community in which it exists.

This moral indifference and tolerance of injustice, must be charged against the people of New South Wales. Their representatives in Parliament have so devoted themselves to the strife for office and the incidence of taxation, that the question of protecting by law, the chastity of young girls, has been ignored. And the people have been content to have it so. In New South Wales, at the present time, any girl of fourteen years and a day, may be outraged, and unless it can be proved that actual violence was used, the law will do nothing to the man who has ruined her. In other words, the law of New South Wales gives its sanction to the seduction of every girl above fourteen, if this can be done without the employment of brute force. And experience shows that men are not slow to avail themselves of this license. In Sydney, the Rescue Homes, the Lying-in Hospitals, and the lock wards are filled with girls, some about to become mothers, others suffering from loathsome diseases, all social outcasts, and with a future of woe and tragedy before them.

Is not this a foul blot on this colony? Are there no men with chivalrous feeling and pity for the weak, whose blood boils when they hear of these things, are there no women whose hearts go out to these poor, fallen children to save them? And cannot all see that it is infinitely better and

easier to try and prevent this fall, than to remedy it after it has happened? For the means of doing this is at hand. It is to raise the age at which a girl can consent to her own seduction. The “Age of Consent” so-called, at present stands at fourteen years. Increase this age to at least eighteen, and thus give the girl protection during the four years of her life in which experience proves that danger threatens her most.

After this age, the girl must be the guardian of her own virtue, and it is most probable that increased knowledge and strength of will power would preserve her from moral ruin. It is a significant fact that while the law holds the child of fourteen capable of defending her honour, it does not allow any girl who may possess property to manage or dispose of it in any way till she is 21 years old, and anyone marrying her without the consent of her legal guardians, even though she may be willing herself, is liable to severe punishment.

If the girl of fourteen is capable of being the guardian of her own virtue then we must concede that physically she is fitted to become a mother, that she realizes to the full, the consequences of immorality, and that her self-control and power of moral resistance render her proof against any bribes or threats by which it may be sought to influence her.

Now all medical authorities would utterly condemn the idea that a girl of fourteen was fit for the stress and strain of motherhood. Not only would she run great danger herself, but her offspring would in all probability be sickly and unfit for the battle of life.

Again, can a young girl comprehend in the least degree, the consequences of consenting to her own ruin?

The majority of girls are brought up in entire ignorance of all matters connected with sex. It is the parent’s boast that they are perfectly “innocent,” by which is meant that they know none of the facts of the genesis of life, and are totally unwarned against the dangers which may assail them at any moment. Nothing could be better fitted for the purpose of the seducer, and the innocence which is supposed to throw a halo of purity round the girl, is sometimes the instrument of her ruin. But, granting that she has learnt in some imperfect and unsatisfactory way, about these matters, can she adequately grasp the results which may come upon her? Is

she aware that she may become a mother, with all the dangers attending maternity, can she estimate the social ostracism, the life-long shame that will be her lot if her fall is discovered; does she know that this first downward step taken through ignorance or thoughtlessness, is the first on the path which leads by the streets of the city to the harlot's grave?

And further, is the period between 14 and 18, one in which self-control is firmly established, and the actions governed by prudence and reason? We know it is not. Girls at this age have little resisting power. Their vanity is easily appealed to, their ignorance of life leads them into situations which older women would avoid, often their affections are easily engaged, and under the caresses and blandishments of the man—generally much older than themselves, they are but as clay in the potter's hands. And it would be difficult to say how many of these case are actually, if not legally, cases of rape, for often a considerable amount of resistance has to be overcome before the crime is effected.

In fact, if we considered this subject calmly and without prejudice, we will see that it is monstrous that in our colony, a young girl may be robbed of her most precious possession, dearer to her than any material wealth, or even than life itself, and our law tacitly connives at it. *The girl consented to her moral ruin, and so there is nothing more to be done.*

This law, or rather want of law, is altogether in the interests of immoral men. Here, adequate protection is not given, because if it were, men would have to desist from debauching young girls, or run the risk of severe penalties.

The only argument ever brought forward by those opposed to giving girls adequate protection, is that if this were done, false charges would constantly be brought against men for the purpose of blackmailing. Now, we may admit that this argument has a certain relevancy, but very much less than those who use it, claim for it. It is true that some additional cases of false charges might arise, but in all probability they would be very few. And for this reason, that in, the majority of these cases of attempted blackmailing, the charges are brought either by very young children, at the instigation of older people, or by adult women who have the knowledge and cunning necessary for the planning out of such a charge. The period from 14 to 18

during which it is suggested to give the protection already accorded to those below 14, is one where there is the least likelihood of false charges being brought.

But the most important counterargument is this. Any girl or any woman can bring a charge of indecent assault against a man, and the same evidence as is required in a case of seduction, would be needed here. Thus any man in this colony, whatever his position, is liable to the danger of false accusation, and the age of the woman bringing the charge, makes no difference. Especially are medical men exposed to this danger, and yet they have never clamoured for additional protection from the law, but have so regulated their actions as to minimise the possibility of such false charges.

It can thus be seen that if a girl wishes to attempt blackmailing, by far the easiest course open to her is to bring a charge of indecent assault, and this is really more difficult of disproof than a charge of seduction. When this can be so readily done, the theory of a greatly increased number of false charges from raising the age of consent, can practically be ignored.

Again, it is urged that girls will tempt young men and then extort money from them. But all who have given attention to the subject agree that it is almost an unheard of thing for a previously chaste girl to invite a man to immorality. If a girl does this, it points to the fact that she has already been seduced, and the change in the law is asked for that this very thing may be prevented. If men are kept from violating young girls, there will be no unchaste girls to tempt men in their turn.

It may be that in a few cases, injustice may be done and men wrongly punished, but this may be urged against every law. And can this possibility outweigh the hundreds of cases of girls who, every year in this colony, meet with physical and moral disaster, which a juster state of law might have prevented? Have we no pity for these children, who on the threshold of what might have been a bright and prosperous life, meet with woeful shipwreck, and instead of becoming the happy wives and mothers of the future, join the unspeakably sad ranks of the prostitute?

Men who have any chivalrous feeling in their nature will gladly accept whatever increased risk there may be, in order that this further protection, till an age when knowledge and prudence are greater, may be given, and

immoral men will have to learn that, if they do not wish to incur this danger, they must not place themselves in positions in which they will be liable to false charges.

What then must be done? It must first be recognised that unless the public voice unmistakably demands this reform those who can give effect to it will not move in the matter. This was shown in England, where for some years the proposal to raise the age of consent was contemptuously rejected by the House of Commons, until Mr. Stead's memorable articles in the *Pall Mall Gazette* raised public feeling to white heat, and the desired legislation was rushed through with almost no opposition in a few days. In the United States, too, during the last eighteen months a well-organised agitation, in which the Women's Christian Temperance Union has taken a leading part, has succeeded in obtaining the age of eighteen in eight States, and the agitation is still being continued to raise it to this in other States where the age is lower.

The W.T.C.U. of New South Wales has determined to follow the example of the American unions, and undertake this momentous work on behalf of its sex. If it can succeed in enlisting the sympathy and co-operation of the Churches and philanthropic societies, and all work together cordially for this great object, public opinion will soon be roused, and from one end of the colony to the other will come the demand that this scandalous state of affairs be instantly remedied. If this be so, the government will hasten to carry out the wishes of the people, and we will take rank with those who cherish and defend at all costs the honour of their daughters. All can help in this work. There are petitions to be signed, public meetings organised, members of Parliament to be interviewed, and many other means by which success may be ensured.

It is to be hoped that none will hold back from assisting on account of prudery, or false delicacy. The purest can and should aid in this crusade, and if they decline to do so from any selfish motive, and this reform is not carried, the blood of those who perished because this has not been done will be upon their heads. But we believe better things of the men and women of New South Wales, and are convinced that, with the help of God, 1896 will not pass till this most needed of all laws has been placed on our Statute Book.



*After reading, kindly give this to a friend, and sign, if possible, a petition in
favour of this object.*

“Christian World” Press, 301 Pitt-st., Sydney.

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